

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1324

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 1-2404, IDAHO CODE, TO REVISE PROVISIONS REGARDING CANDIDATE QUALIFICATIONS FOR THE OFFICE OF COURT OF APPEALS JUDGE; AMENDING SECTION 34-615, IDAHO CODE, TO REVISE PROVISIONS REGARDING CANDIDATE QUALIFICATIONS FOR THE OFFICE OF SUPREME COURT JUSTICE; AMENDING SECTION 34-616, IDAHO CODE, TO REVISE PROVISIONS REGARDING CANDIDATE QUALIFICATIONS FOR THE OFFICE OF DISTRICT JUDGE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 1-2404, Idaho Code, be, and the same is hereby amended to read as follows:

1-2404. NUMBER OF JUDGES -- QUALIFICATIONS -- CONDUCT AND DISCIPLINE -- TERM -- ELECTION -- SELECTION -- COMPENSATION. (1) The court of appeals shall consist of four (4) judges, and shall sit in panels of not less than three (3) judges each.

(2) To be elected or appointed to the office of judge of the court of appeals a person must, at the time of such election or appointment, meet all of the following qualifications:

(a) Be at least thirty (30) years of age;

(b) Be a citizen of the United States and an elector of the state of Idaho;

(c) Have been a legal resident of the state of Idaho for at least two (2) continuous years immediately preceding such election or appointment;

(d) Have been in good standing as an active or judicial member of the Idaho state bar for at least two (2) continuous years immediately preceding such election or appointment; and

(e) Have held a license to practice law or held a judicial office in one (1) or more jurisdictions for at least ten (10) continuous years immediately preceding such election or appointment.

(3) No person who has been appointed by the governor to fill a vacancy on the court of appeals is eligible to be a candidate for election to that same seat at the next election held for such seat following the appointment.

(4) For purposes of this section, the following terms have the following meanings:

(a) "Active," "judicial" and "good standing" have the same definitions as those terms are given by rule 301 of the Idaho bar commission rules or any successors to those rules;

(b) "Jurisdiction" means a state or territory of the United States, the District of Columbia or any branch of the United States military; and

(c) "Elector" means one who is lawfully registered to vote.

~~+3)~~ (5) A judge of the court of appeals shall be governed by the code of judicial conduct as promulgated by the Idaho supreme court, and shall be sub-

ject to removal, discipline, or retirement pursuant to section 1-2103, Idaho Code.

~~(4)~~ (6) (a) Judges of the court of appeals shall be appointed by the governor effective the first Monday of January, 1982, for the following initial terms: one (1) judge shall be appointed for a term to expire on the first Monday of January, 1985, one (1) judge shall be appointed for a term expiring two (2) years later, and one (1) judge shall be appointed for a term expiring two (2) further years later. Thereafter, the term of office of a judge of the court of appeals shall be six (6) years.

(b) Vacancies in the office of judge of the court of appeals shall be filled in the same manner as vacancies in the office of supreme court justice or district judge.

(c) The positions of judges of the Idaho court of appeals shall first be filled as vacancies. The judicial council shall submit to the governor its recommendations for the offices at the earliest practicable time after the effective date of this act. The governor may make the appointment at any time thereafter, to be effective the first Monday of January, 1982, for the terms set forth in ~~subsection (4)~~ paragraph (a) of this subsection.

(d) In making its nominations for the initial vacancies to be created by this act, the Idaho judicial council shall submit the names of not less than six (6) nor more than nine (9) qualified persons for the initial three (3) vacancies to be created by this act. Otherwise, the judicial council shall submit the names of not less than two (2) nor more than four (4) persons for each vacancy. The governor shall appoint the judges, identifying each appointment by the length of the term of appointment.

(e) Nominations and appointments to fill initial or subsequent vacancies shall be made with due regard for balanced geographical membership of the court of appeals.

(f) Subsequent terms of office of a judge who has been appointed to the court of appeals shall be subject to a statewide nonpartisan election to be held in the primary election next preceding the expiration of an appointed term in the same method and manner as a justice of the supreme court.

(g) A fourth judge of the court of appeals shall be appointed by the governor effective the first Monday of January, 2009, for an initial term to expire on the first Monday of January, 2013. Thereafter, the term of office for this position shall be six (6) years. The judicial council shall submit the names of not less than two (2) nor more than four (4) persons for the initial vacancy in this position under the procedure set forth in section 1-2102, Idaho Code. This position shall be subject to all of the provisions relating to qualifications, removal, discipline, retirement, filling of vacancies, election and compensation set forth in this chapter.

~~(5)~~ (7) Judges of the court of appeals, except for judges who have made an election to remain in the public employee retirement system of Idaho pursuant to section 1-2011, Idaho Code, shall receive compensation upon retirement as provided in chapter 20, title 1, Idaho Code.

SECTION 2. That Section 34-615, Idaho Code, be, and the same is hereby amended to read as follows:

34-615. ELECTION -- SELECTION -- OF JUSTICES OF THE SUPREME COURT -- QUALIFICATIONS. (1) At the primary election, 1972, and every alternate year thereafter, subject to the provisions of section 34-1217, Idaho Code, there shall be elected justices of the supreme court to fill any vacancy or vacancies occasioned by the expiration of the term or terms of office of any member or members.

(2) To be elected or appointed to the office of justice of the supreme court a person must, at the time of such election or appointment, meet all of the following qualifications:

(a) Be at least thirty (30) years of age;

(b) Be a citizen of the United States and an elector of the state of Idaho;

(c) Have been a legal resident of the state of Idaho for at least two (2) continuous years immediately preceding such election or appointment;

(d) Have been in good standing as an active or judicial member of the Idaho state bar for at least two (2) continuous years immediately preceding such election or appointment; and

(e) Have held a license to practice law or held a judicial office in one (1) or more jurisdictions for at least ten (10) continuous years immediately preceding such election or appointment.

(3) No person who has been appointed by the governor to fill a vacancy on the supreme court is eligible to be a candidate for election to that same seat at the next election held for such seat following the appointment.

(4) For purposes of this section, the following terms have the following meanings:

(a) "Active," "judicial" and "good standing" have the same definitions as those terms are given by rule 301 of the Idaho bar commission rules or any successors to those rules;

(b) "Jurisdiction" means a state or territory of the United States, the District of Columbia or any branch of the United States military; and

(c) "Elector" means one who is lawfully registered to vote.

~~(3)~~ (5) Each candidate for election shall file a declaration of candidacy with the secretary of state.

~~(4)~~ (6) Each candidate who files a declaration of candidacy shall at the same time pay a filing fee of three hundred dollars (\$300) which shall be deposited in the general fund.

SECTION 3. That Section 34-616, Idaho Code, be, and the same is hereby amended to read as follows:

34-616. ELECTION -- SELECTION -- OF DISTRICT JUDGES -- QUALIFICATIONS. (1) At the primary election, 1974, and every four (4) years thereafter, subject to the provisions of section 34-1217, Idaho Code, there shall be elected in each judicial district a sufficient number of district judges to fill any vacancy or vacancies occasioned by the expiration of the term or terms of office of any member or members.

(2) To be elected to the office of district judge a person must, at the time of such election, meet all of the following qualifications:

1 (a) Be at least thirty (30) years of age;

2 (b) Be a citizen of the United States and an elector in the judicial dis-
3 trict in which elected for at least one (1) continuous year immediately
4 preceding such election;

5 (c) Have been a legal resident of the state of Idaho for at least two (2)
6 continuous years immediately preceding such election;

7 (d) Have been in good standing as an active or judicial member of the
8 Idaho state bar for at least two (2) continuous years immediately pre-
9 ceding such election; and

10 (e) Have held a license to practice law or held a judicial office in one
11 (1) or more jurisdictions for at least ten (10) continuous years immedi-
12 ately preceding such election.

13 (3) No person who has been appointed by the governor to fill a vacancy on
14 a district court is eligible to be a candidate for election to that same seat
15 at the next election held for such seat following the appointment.

16 ~~(3)~~ (4) Each candidate for election shall file a declaration of candi-
17 dacy with the secretary of state.

18 ~~(4)~~ (5) Each candidate who files a declaration of candidacy shall at the
19 same time pay a filing fee of one hundred fifty dollars (\$150) which shall be
20 deposited in the general fund.

21 ~~(5)~~ (6) To be appointed to the office of district judge a person must, at
22 the time of such appointment, meet all of the following qualifications:

23 (a) Be at least thirty (30) years of age;

24 (b) Be a citizen of the United States and an elector ~~of the state of~~
25 ~~Idaho~~ in the judicial district in which the vacancy is being filled for
26 at least one (1) continuous year immediately preceding the appointment;

27 (c) Have been a legal resident of the state of Idaho for at least two (2)
28 continuous years immediately preceding such appointment;

29 (d) Have been in good standing as an active or judicial member of the
30 Idaho state bar for at least two (2) continuous years immediately pre-
31 ceding such appointment; and

32 (e) Have held a license to practice law or held a judicial office in one
33 (1) or more jurisdictions for at least ten (10) continuous years immedi-
34 ately preceding such appointment.

35 ~~(6)~~ (7) For purposes of this section, the following terms have the fol-
36 lowing meanings:

37 (a) "Active," "judicial" and "good standing" have the same definitions
38 as those terms are given by rule 301 of the Idaho bar commission rules or
39 any successors to those rules;

40 (b) "Jurisdiction" means a state or territory of the United States, the
41 District of Columbia or any branch of the United States military; and

42 (c) "Elector" means one who is lawfully registered to vote.

43 SECTION 4. An emergency existing therefor, which emergency is hereby
44 declared to exist, this act shall be in full force and effect on and after
45 July 1, 2026.